

[doc. web n. 9980617]

Provision of December 21, 2023

\*The provision has been challenged

Register of provisions

n. 601 of December 21, 2023

## THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN the meeting held today, attended by  
Prof. Pasquale Stazione, President, Prof.  
Ginevra Cerrina Feroni, Vice President, Dr.  
Agostino Ghiglia and Attorney Guido Scorza, members, and  
Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European  
Parliament and of the Council, of April 27, 2016, concerning  
the protection of natural persons with regard to the  
processing of personal data, as well as the free  
movement of such data and repealing Directive  
95/46/EC, "General Data Protection Regulation" (hereinafter "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003,  
containing "Code regarding the protection of personal data,  
containing provisions for the adaptation of the  
national legal system to Regulation (EU)  
2016/679 of the European Parliament and of the Council, of  
April 27, 2016, concerning the protection of  
natural persons with regard to the processing of personal data,  
as well as the free movement of such data and repealing  
Directive 95/46/EC" (hereinafter "Code");

HAVING REGARD TO Legislative Decree No. 101 of August 10, 2018,  
containing "Provisions for the adaptation of national legislation  
to the provisions of Regulation (EU)  
2016/679 of the European Parliament and of the Council, of  
April 27, 2016, concerning the protection of  
natural persons with regard to the processing of personal data,  
as well as the free movement of such data and repealing  
Directive 95/46/EC";

HAVING REGARD TO Regulation No. 1/2019 concerning  
internal procedures of external relevance,  
aimed at carrying out the tasks and  
exercising the powers assigned to the Guarantor for the  
protection of personal data, approved by  
resolution No. 98 of 04/04/2019, published in  
G.U. No. 106 of 08/05/2019 and on [www.gpdp.it](http://www.gpdp.it), doc. web  
n. 9107633 (hereinafter "Guarantor Regulation No.  
1/2019");

HAVING REGARD TO the documentation in the records;  
HAVING REGARD TO the observations made by the Secretary  
General pursuant to Article 15 of Guarantor Regulation  
No. 1/2000 on the organization and  
operation of the office of the Guarantor for the  
protection of personal data, doc. web n. 1098801;  
Rapporteur Dr. Agostino Ghiglia;

## PREMISED

### 1. The application and the investigative activity

With a note dated XX, Ms. XX submitted a complaint against the Local Health Authority No. 8 of Cagliari, complaining about the loss of "biological data, of genetic nature, contained in the slides and histological sections present within her medical record" (...) "due to their delivery to unspecified and unidentifiable subjects by the Hospital that held them." This circumstance was learned by the complainant only "following the filing of the report by the CTU - Technical Consultant of the Court of Appeal that occurred on XX."

In particular, according to what was stated in the aforementioned complaint, the absence of the slides and histological sections containing Ms. XX's genetic material would have "literally prevented the CTU of the Court of Appeal from confirming the defense thesis of the complainant, with the likely effect of causing her to lose the case on appeal against ASL8. In this regard, the same CTU states that: «It is absolutely essential to remember that I was not put in a position to have access to the histological preparations that represent an important element to support or not the validity of the compensation request»."

Following the complaint, the Authority initiated an investigation, requesting, with a note dated XX, the Local Health Authority No. 8 of Cagliari for useful elements for the evaluation of the case in question. With a note dated XX, the General Director of the aforementioned Authority provided a response stating that:

- "from what is reported in the complaint under Article 77 of Regulation EU 2016/679, the alleged data breach to the detriment of the interested party would have occurred on XX, likely on XX (the day on which the delivery of the material containing the genetic data of the interested party to unspecified subjects occurred) at the Hospital Facility 'Businco' and recalling the definition of data controller and 'what is expressed in Guidelines 07/2020 Version 2.0 of the EPDB' which 'in the case we are interested in, the legal entity to which the law has assigned the task (purpose) of preserving the "biological data, of genetic nature, contained in the slides and histological sections present within the [...] medical record of the complainant" is to be identified based on the legislative provisions in force at the time';
- "the L.R. No. 23/2014, in force at the time of the alleged loss of the complainant's genetic data, containing 'urgent provisions for the reform of the regional health system', provided in Article 9, paragraph 1 letter c ["the incorporation of the national relevance hospital 'G. Brotzu' of the hospital facilities 'Microcitemico' and 'Oncologico - A. Businco' (the latter where the loss would have occurred), currently belonging to ASL No. 8 of Cagliari"]]. Therefore, by virtue of

the aforementioned provisions, at the time of the event subject to the complaint (XX), the entity to which the law assigned the task of processing the personal data of the complainant is to be identified in A.O. Brotzu (...) now Arnas Brotzu”;

- in relation to the judicial matter subject to the complaint “the undersigned Administration has not been and would not have been able to know about the occurrence of the loss of biological data of a genetic nature following the filing of the CTU that took place on XX since it is not part of the ongoing proceedings before the Court of Appeal of Cagliari. In fact, in the aforementioned case, from the few pieces of information gleaned from the complaint, the now-defunct ASL 8 (which the appellant indeed identifies with C.F. 02261430926) merged into the Health Protection Agency of Sardinia (ATS SARDEGNA) with L.R. No. 17/2016”;

- “this Agency (Local Health Authority No. 8 of Cagliari – VAT No. 03990560926), as provided for by L.R. No. 24 of 2020, amended by art. 34 lett. B) of the subsequent L.R. No. 17 of 2021, has been established since 01.01.2022, and in addition, the regional health liquidation management has been established, endowed with legal personality and financial and economic autonomy, responsible for the liquidation of all active and passive positions and all pending lawsuits, from the date of establishment of the Health Protection Agency (ATS) and those previously belonging to the abolished local health units and the abolished health agencies (see also the following link: <https://www.atssardegna.it/azienda>)”;

- “it is believed that the information requested by this Authority Garante regarding the facts subject to the complaint submitted pursuant to art. 77 of EU Regulation 2016/679 should not be directed to this Agency, but rather to Arnas Brotzu (at the time of the events AO Brotzu) as the Data Controller pursuant to art. 4 of EU Regulation 2016/679 as of today as at the time of the events.” Elements of information useful for assessing the case were therefore requested from the National and High Specialization Agency G. Brotzu, with note of XX (prot. n. XX), which provided feedback with note of XX, stating that:

- “it is not believed that personal data of a genetic type are involved in the aforementioned episode. In support of this statement, reference is made to what is expressed in the “Opinion 4/2007 on the concept of personal data” of WP29 page 9 “Human tissue samples (like a blood sample) are themselves sources out of which biometric data are extracted, but they are not biometric data themselves (as for instance a pattern for fingerprints is biometric data, but the finger itself is not). Therefore the extraction of information from the samples is collection of personal data, to which the rules of the Directive apply. The collection, storage and use of tissue samples themselves may be subject to separate sets of rules.” In this context, reference is made to the Recommendation Rec (2006) 4 of the Committee of Ministers to member states on research on biological materials of human origin and its Explanatory Memorandum (partially applicable to the case at hand)”;

- “the materials (slides and specimens) subject to this complaint date back to a histological examination performed by Ms. XX in the year XX at the A. Businco Hospital Facility, then incorporated into ASL No. 8 of Cagliari, which was therefore the Data Controller, pursuant to the then applicable art. 1, paragraph 2, lett. D), of the then applicable Law 675/1996”;

- “only with L.R. No. 23 of 17.11.2014, at art. 9, co. 1, lett. C) and co. 3, lett. A), the Sardinia Region provided, effective from XX, for the incorporation into the then Hospital Company G. Brotzu (now ARNAS G. Brotzu) of the hospital facilities A. Cao and A. Businco, thus this hospital facility, until that moment, did not fall within the competence of the writing Agency and moreover at the date of incorporation there was still no obligation to notify personal data breaches, as is known, introduced by arts. 33 et seq. of the General Regulation on the protection of personal data 2016/679/EU (hereinafter GDPR)”;

- “the CTU Dr. XX, with communication XX of XX, requested this Agency: “as the court-appointed expert in the Case XX against ASL 8 Cagliari plus others, N.R. 468/2016, Court of Appeal of Cagliari...”

please urgently communicate to this CTU to whom the histological specimens that were never returned to your hospital were delivered. The party consultants provided me with a document from the Oncological Hospital (...), from which it is not clear to whom the aforementioned histological material was delivered”;

- “with note Prot. n. XX and Prot. n. XX of XX, the Medical Directorate of Businco immediately proceeded to verify what was requested by CTU XX, requesting communications regarding both the Director of the SC Pathological Anatomy and the Company SISAR, as the awarded company for the outsourced archiving service, communications and related documentation regarding the “movement of the material in question”;

- “from the examination of the respective responses, it emerged that: on XX the Pathological Anatomy department transmitted to Sisar the request for copies of the reports and all the specimens XX of Ms. XX, which on the same day Sisar transmitted a digital copy of the reports and communicated the delivery of the specimens for the following day; that, on the subsequent XX, the specimens and slides were delivered by the Sisar operator to the medical records office of the P.O. Businco into the hands of Ms. XX, who signed the report for the completed delivery”;

- “the Health Directorate of Businco, with note prot. n. XX of XX then communicated to Prof. XX “there is no documentation on file with the Writing Medical Directorate and the SC Pathological Anatomy”;

- “following the receipt of the request for information from this Esteemed Garante (...), this General Directorate immediately proceeded to verify what happened, requesting information regarding the matter from the parties involved in some way, as well as to retrieve the documentation related to the technical and organizational measures adopted, with particular regard to the management of biological samples, and the instructions provided to staff in this regard”;

- “from the examination of the documentation thus obtained (...) it has emerged that the materials under examination, (...) dating back to XX, were subject to various movements well before XX, given that there is a pending judgment —currently at the appeal stage— between ASL n. 8 of Cagliari and Ms. XX - (...) and that the same materials were examined by the appointed CTUs in the previous stage of the judgment, in which, it should be noted, this Company is not a party and had never been informed about it, at least until May 2022, resulting in the absence of any “alert” regarding a specific preservation for reasons of justice”;

- “from the examination of the delivery list of SISAR, it is derived that on XX the latter would have physically delivered tiles and slides to the Clinical Records Office of Businco, to the person of XX who signed the delivery report (...). Conversely, there is no further documentation on record that certifies what happened following such delivery to the Clinical Records Office. Regarding this last point, it is noted that (...) the documentation on record, which is produced, does not in any way reveal the delivery of such materials externally “to unknown persons.” In fact, conversely, the external Company merely acknowledges the delivery of the materials on XX to the Clinical Records Office, while the wording “not returned” evidently refers to the same Company Sisar, which acknowledges that following the delivery to the Clinical Records Office it did not receive the materials back”;

- “as emerges from the report of Dr. XX, as the substitute Head of the SC Pathological Anatomy (...), the Company and specifically, the Pathological Anatomy Service, as a consolidated practice, proceeds to manage the delivery of slides and tiles to those entitled, “after checking a valid document, identity card, a pre-printed form is filled out. In the meantime, a photocopy of the document is made which will be attached to a folder with the name of the requester. The patient is invited to return after 2/3 days necessary for internal procedures: the person in charge of the request retrieves the material from the archive and submits it to the doctor who made the diagnosis so that he can verify whether the material corresponds to the request. When everything is ready (reports and a copy of the report with the request authorized by the doctor) the patient can come to collect it. Meanwhile, the person responsible for preparing the folder also makes a photocopy of the material to be delivered (photocopy of the tiles for example). At the time of collection, the patient signs the pre-printed form where it specifies how many tiles are being delivered to him.” In relation to the archiving of the materials under examination,

similarly, it is transcribed what was stated by the Director of the Pathological Anatomy Service, Dr. XX, (...), namely that: "both the slides and the tiles archived at the S.C. Pathological Anatomy are located inside laminated modules ordered by progressive number and by year inside a locked room where only authorized personnel can access and move them (when necessary for the doctor to see any previous cases he is studying for diagnosis, for example). Unauthorized persons cannot access it, considering as such even employees of the Company unless accompanied by departmental personnel (Coordinator for example) ... Currently (since XX), by Company directive (...), the archiving of samples takes place at SISAR s.a.s., including the case under investigation";

- "regarding the preservation times of the tiles and slides, it is important to note that (...), there is no specific legislative regulation and a strictly set deadline. In fact, from the examination of the Guidelines of the Ministry of Health in this matter from May 2015 (point 5.3.2), it emerges how the competent Ministry suggests, on the one hand, the outsourcing of the service —as this Company has arranged— and on the other, to proceed with the preservation of materials of the type under today's examination for a minimum period of 10 years (...);

- "well, this prescription appears to be respected by this Company, considering the circumstance that the elements under examination date back to the year XX";

- "furthermore, (...), this Company has resolved, over the years, to approve the Annual Training Plan, providing, among other things, for the conduct of courses concerning the monitoring of health documentation";

- "the Company has also provided, over the years, training on the protection of personal data (...);

- "the events described above, which concern a particularly long historical period (it is recalled that the biological samples were collected in XX, and that, as mentioned in the introduction, the present event concerns biological samples, and certainly not genetic data), during which various holders succeeded one another, and relating to periods for which there was not yet an obligation to notify personal data breaches (as is known, following the regulations of Articles 33 and 34 of the GDPR, and thus applicable from 25/5/2018, the notification obligation provided for in the Guidelines on health dossiers —June 4, 2015 [4084632] is certainly not applicable to the present case);

- "(...) ARNAS was not a party to the judicial proceedings related to this matter and was not informed of it until May 2022, that is, with the request of the CTU. In this context, were genetic data or personal data as defined by the applicable regulations."

2. Evaluations of the Department on the treatment carried out and notification of the violation referred to in Article 166, paragraph 5 of the Code

In relation to the facts described, the Office, with a note dated XX (prot. n. XX), notified the National and High Specialization Company G. Brotzu (hereinafter "ARNAS Brotzu") of the initiation of proceedings for the adoption of measures referred to in Article 58, paragraph 2, of the Regulation, inviting it to submit defensive writings or documents to the Authority or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code; as well as Article 18, paragraph 1, of Law No. 689 of 24/11/1981).

In particular, the Office, in the aforementioned act, considered that ARNAS Brotzu had carried out data processing in violation of the basic principles of processing referred to in Articles 5, 9, and 32 of the Regulation, as well as the "Provision containing the prescriptions relating to the processing of special categories of data, pursuant to Article 21, paragraph 1 of Legislative Decree No. 101 of August 10, 2018."

With a note dated XX, ARNAS Brotzu submitted its defensive memoranda, in which it particularly highlighted that:

- "in the episode (...) (in question) no genetic data or personal data as defined in Article 4, paragraph 1, no. 1 of the Regulation are involved";

- "the loss of materials, represented by slides and samples from a histological examination, cannot be

considered an unlawful processing of personal data, due to the very nature of the samples involved”; “the concept of ‘biological sample’ was also explicitly stated in the same terms in the Authority’s document regarding the Authorization for the processing of genetic data – February 22, 2007 (...) and then reiterated in the more recent Prescriptions regarding the processing of genetic data no. 8/2016 (...). Based on the aforementioned 2016 prescriptions, the current definition of ‘genetic data’ is represented by ‘the result of genetic tests or any other information that, regardless of the type, identifies the genotypic characteristics of individuals transmissible within a group of people linked by kinship’;

while for ‘biological sample’ it should be considered ‘any sample of biological material from which genetic data of an individual can be extracted.’

It emerges, therefore, that even under the current regulations, ‘genetic data’ can only be considered the result of a genetic test, that is, an operation that allows for the extrapolation of personal data capable of revealing the genotypic characteristics of an individual. The biological sample, considered in itself, is not personal data, in the absence of an extraction process that allows for the identification of the genetic data characteristic of an identified or identifiable individual”;

“in the case at hand, what was lost were not genetic data, but rather samples of biological material, which in themselves lack the character of personal data, or the informative element required as essential also by Article 4, no. 1 of Regulation (EU) 2016/679”;

“for the reasons stated above, it is believed that the hypothesis in question cannot be considered within the competence of the Authority, precisely because the materials requested by the interested party and by the CTU were not genetic data or personal data as defined by the applicable regulations.” “can be considered personal data”;

“even if one were to assume that the biological samples in themselves are personal data, as has already been specified and as emerges from the report of Dr. XX, then substitute Data Controller of the SC Pathological Anatomy (..), the Company and specifically, the Pathological Anatomy service, at that time already had a structured process for the management of the delivery of slides and blocks to those entitled (...);”

“in relation to the archiving of the materials subject to examination, similarly, the Company applied a structured process (...), already described in the note from XX in response to the request for information from the Authority;”

“in this case, the management of biological samples by the Company complied with what is prescribed by art. 4.2. of the ‘Provision containing the prescriptions regarding the processing of special categories of data, pursuant to art. 21, paragraph 1 of Legislative Decree of August 10, 2018, no. 101’, for the applicable part;”

“access to the premises was strictly regulated and the management, storage, and transport of the samples were managed in a traceable manner, allowing for the reconstruction of the entire path related to the samples themselves, with the contested episode being an exceptional fact in light of the absolutely relevant number of samples regularly moved by the service. In this regard, there is also no violation of art. 32 of the Regulation, given that appropriate security measures were applied to the management of biological samples (...);”

“it would also appear that the violation of arts. 5 and 9 of the Regulation is contested for not having provided ‘evidence of the assessment, by the healthcare structure and after consulting the physician responsible for the conduct, regarding the appropriateness of retaining biological samples even beyond the proposed ten-year term (...)’, assuming that this company was aware, as of XX, of the pendency of a judicial proceeding;”

“in reality (...) the Company was not, nor is, a party to the proceedings, nor was it the data controller at the time of the establishment of the same, and it was never adequately informed in this regard, at least until May 2022, resulting in the absence of any ‘alert’ regarding a specific retention for reasons of justice;”

“as for the allegation regarding the violation of art. 9 of the Regulation, it is reiterated that (...) there has been no communication to third parties of any personal data;”

“this is an isolated case, also related to the complex situation of the succession between healthcare companies following multiple regional reforms in the matter, which led to the pendency of a dispute to which ARNAS was and is totally unrelated and of which it became aware only during the year 2022. The alleged violation concerned exclusively biological samples (block and slides) of a single interested party;”

“with regard to the contested conduct, it should be clarified that if it is deemed to exist, it must certainly be considered in its negligent character (at the level of slight fault). In fact, the character is certainly negligent: the omission of formalizing a procedure that would have merely incorporated the established practice of good clinical practice and correct management of samples that has been in place for about forty years is contested. The succession of operations of aggregation of healthcare companies and related spin-offs have at least slowed down this activity, making it appropriate, if not necessary, to proceed uniformly across the different structures. The prescriptions referred to in point a) of chapter 4.2. of the Prescriptions are largely covered by what has already been stated. Point b) is covered regarding the tracking of movements (considered as the major risk factor);”

“the Company has resolved with resolution no. XX of XX to identify, pursuant to art. 2-quaterdecies paragraphs 1 and 2 of Legislative Decree 196/2003, as designated the Directors of Complex Structures and the Directors of Simple Departmental Structures, and to establish that authorized persons for processing are to be understood as all employees and collaborators, in any capacity, of the hospital company, who process personal data (...);”

“the Company has resolved, over the years, the approval of the Annual Training Plan, providing, among other things, for the conduct of courses on the monitoring of health documentation” and has “also, over the years, provided training on data protection;”

“ARNAS, with the help of the appointed DPO, has immediately had a collaborative attitude with the Authority, responding promptly to the report, critically analyzing the problematic profiles, and providing promptly all the requested clarifications in a timely manner; (...) the Company immediately activated itself, involving the DPO and the new Director of the SC Pathological Anatomy (...) for a comprehensive verification of the management process of biological samples and for its formalization in a procedure aimed at crystallizing and, if necessary, improving the existing process. Among other things, the use of computerized archive cabinets that utilize the reading of the barcodes present on the blocks and slides is planned (...);”

“the processing concerned solely biological samples of a single interested party;”

“it is emphasized (...) the estrangement of ARNAS from the pending dispute between the interested party and another Healthcare Company;”

“the operations of incorporation and merger and

\*\*Divisione che hanno interessato il trattamento hanno posto forti ostacoli organizzativi in generale e per il trattamento specifico. Si fa presente che per la responsabilità amministrativa l'onere di una eventuale sanzione potrebbe ricadere in ultima battuta su una persona fisica e quindi potrebbe essere applicabile il considerando 148 (...) almeno nel determinare l'entità della sanzione.\*\*

On XX, the hearing requested by the ARNAS Brotzu Company took place, during which it was deemed appropriate to present a presentation concerning the remediation measures, including the procedure for managing requests for biological material, adopted by resolution no. XX of XX, which was transmitted during the hearing.

On the same occasion, in addition to what has already been highlighted in the submissions, it was stated that:

- “the aforementioned resolution (no. XX of XX) formalizes the procedure already in use and introduces elements of improvement and simplification, in order to reduce the possibilities of error;
- the improvement actions of the procedure also consist of centralizing it at the Pathological Anatomy department;
- the procedure allows for the minimization of the required steps and better tracking of the operations performed on the samples and slides;
- the Company, within the framework of the three-year needs plan, has requested to create computerized cabinets for the fully digitized management of the archive, with the possibility of being

alerted via an alert for the non-return of biological material that may have been delivered to the patient;

- in the short term, a field training activity on the new procedure has already been planned, which has been communicated within the pathological anatomy service, and, furthermore, a course/conference on the novelties regarding personal data protection in healthcare;
- in relation to the event subject to the complaint, it is specified that in XX the barcode was not provided and the samples were marked manually with a pencil, resistant to the solvents used to process the material;
- through the aforementioned changes, the Company intends to undertake a process of continuous improvement, also planning periodic audits to allow for the monitoring of the actual application of the procedure and its effectiveness;
- even the complaint procedure has had the effect of further activating the Company to undertake every possible action to improve the procedures and prevent the recurrence of the event that occurred;
- the DPO was immediately involved in the process of analyzing the facts subject to the complaint and in the improvement actions."

From the documentation titled "Presentation of the procedure referred to in resolution no. XX of XX," transmitted during the aforementioned hearing, it appears that "the biological material (paraffin blocks, histological and cytological slides) is stored in specific archives according to the numbering (assigned by the IT system) with which they were accepted upon entry. This is a unique and progressive numbering distinguished by year and type of sample. The number and the corresponding barcode are printed on paraffin blocks and slides."

### **\*\*3. Esito dell'attività istruttoria\*\***

Having taken note of what was represented by the ARNAS Brotzu Company in the documentation on file, in the defense submissions, and during the hearing, it is observed that:

1. The Regulation provides that personal data must be "processed in a manner that ensures adequate security (...), including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage (principle of 'integrity and confidentiality')" (art. 5, par. 1, lett. f) of the Regulation). The adequacy of such measures must be assessed by the controller and the processor in relation to the nature of the data, the subject, the purposes of the processing, and the risk to the rights and freedoms of the data subjects, taking into account the risks arising from the destruction, loss, alteration, unauthorized disclosure, or accidental or unlawful access to personal data transmitted, stored, or otherwise processed (art. 32, par. 1 and 2 of the Regulation);
2. In light of the principle of accountability, "the data controller must comply with and be able to demonstrate both compliance with the principles and obligations set out in the Regulation" (arts. 5, par. 2, 24 of the Regulation);
3. According to the definition provided by the Regulation, health data are "personal data related to the physical or mental health of a natural person, including the provision of health care services, which reveal information concerning his or her health status," including "information about the natural person collected during his or her registration to receive health care services or the related provision under Directive 2011/24/EU of the European Parliament and of the Council; a number, symbol, or specific element assigned to a natural person to uniquely identify him or her for health purposes; information resulting from examinations and checks carried out on a part of the body or a biological substance, including genetic data and biological samples; and any information concerning, for example, a disease, a disability, the risk of disease, medical history, clinical treatments, or the physiological or biomedical status of the data subject.  
independently from the source, such as, for example, a doctor or other healthcare professional, a hospital, a medical device, or an in vitro diagnostic test" (art. 4, par. 1, point 15 and Cons. n. 35);
4. with particular reference to the custody and security of biological samples, the "Provision containing the prescriptions relating to the processing of special categories of data, pursuant to art. 21, paragraph 1 of Legislative Decree No. 101 of August 10, 2018" of the Guarantor No. 146 of June 5, 2019 (published in G.U. No. 176 of July 29, 2019 and available at [www.gpdp.it](http://www.gpdp.it), web doc. No. 9124510) has prescribed specific precautions that must be adopted by the data controller with particular reference to



the storage, use, and transport of biological samples, which must occur in ways aimed also at ensuring their quality, integrity, availability, and traceability (point 4.2, letter b);

5. the regulations regarding the protection of personal data also provide that information about health status may only be communicated to the data subject and may be communicated to third parties only on the basis of an appropriate legal basis (art. 9 of the Regulation and art. 84 of the Code in conjunction with art. 22, paragraph 11, Legislative Decree No. 101 of August 10, 2018);

6. the guidelines of the Ministry of Health - Superior Health Council regarding "Traceability, Collection, Transport, Storage, and Archiving of cells and tissues for diagnostic investigations of PATHOLOGICAL ANATOMY" (XX), available at [https://www.salute.gov.it/imgs/C\\_17\\_pubblicazioni\\_2369\\_allegato.pdf](https://www.salute.gov.it/imgs/C_17_pubblicazioni_2369_allegato.pdf), provide that, with regard to the sampled material (paraffin blocks and slides), "given the necessity of setting a minimum duration for the obligation of storage, highlighting the need for regulatory intervention on this point, it is believed that this term can reasonably be determined as ten years. (...) Regarding the medico-legal needs and the possible defense of the healthcare facility or the doctor during a potential civil or criminal trial (...), it should be emphasized that the term in question only entails the cessation of an obligation to store the material, while the right of the facility to retain the material for a longer period remains (for example, in all cases where there is an ongoing dispute with a patient or with their successor). In the case of an indefinite duration of the obligation, the facility is required to store and deliver the sample at any time to the civil judicial authority, and failure to deliver it may be relevant pursuant to art. 116 of the Code of Civil Procedure. By setting a duration term, any failure to deliver the material (in case of destruction or loss) after the expiration of that term cannot be relevant pursuant to art. 116 of the Code of Civil Procedure," specifying that "the ten-year term is a minimum term, at the expiration of which the obligation of storage for the facility that holds it extinguishes. In any case, if civil or criminal proceedings are ongoing, the healthcare facility, having consulted the doctor responsible for the conduct, is required to evaluate the appropriateness of retaining the material even beyond the ten-year term, considering the ongoing litigation, while maintaining its discretion on this point and the extinction of the aforementioned obligation of storage" (see point 5.3.2. of the aforementioned document).

#### 4. Conclusions

In light of the evaluations set forth above, taking into account the statements made by the data controller during the investigation and considering that, unless the act constitutes a more serious crime, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable pursuant to art. 168 of the Code ("Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or exercise of the powers of the Guarantor"), it is noted that the elements provided by the ARNAS Brotzu Company in the aforementioned defensive memoranda and during the hearing are not sufficient to fully accept the requests for archiving, as they do not allow for overcoming the observations notified by the Office with the aforementioned initiation act of the proceeding.

Preliminarily, it should be noted that, regardless of the qualification of the slides and blocks of a histological examination as "genetic data," they can certainly, in this case, be traced back, in any case, to the special categories of personal data provided for in art. 9 of the Regulation. In fact, the biological materials extracted from the complainant, associated with elements, in this case numerical (XX and XX), referring to the identity of the natural person to whom they belong (Ms. XX), since they reveal information regarding the provision of healthcare services, constitute health data, as defined by art. 4, par. 1, point 15 of the Regulation and Cons. n. 35, protected by the specific guarantees of art. 9 of the Regulation.

That said, it should be noted that, in light of the documentation acquired, it appears that "there has never existed a written protocol for the management of specimens as the procedure has been well established over time (over 40 years) and, in the custody of the specimens in charge of the archive of the U.O. of Pathological Anatomy (tens of thousands of cases have now been archived), we have always taken the utmost care and attention in storing them in the best possible way. It does NOT appear to me that there are written protocols for the management and custody of specimens, at the

U.O. of Pathological Anatomy where I work and/or in Sardinia and/or in Italy” (see Declaration of the Director of the Pathological Anatomy Service, All. n. 7 to the email of XX).

In this regard, even if the ARNAS Brotzu Company, as stated by itself, was not aware, in XX, of the pendency of a lawsuit that could have required further investigations to be carried out on the biological samples collected and, therefore, even if it had not been placed in a position to make an assessment—as required by the aforementioned guidelines of the Ministry of Health—Superior Health Council regarding “Traceability, Collection, Transport, Storage, and Archiving of cells and tissues for diagnostic investigations of PATHOLOGICAL ANATOMY” of XX—regarding the appropriateness of preserving biological samples even beyond the proposed ten-year term, in any case, the aforementioned circumstances do not exempt the Company from the obligation to document what treatment operation (including, if applicable, deletion and destruction) had been carried out on the personal data contained in the slides associated with uniquely identified individuals for health purposes.

In fact, in light of the principle of so-called “accountability,” which requires data controllers to be able to demonstrate the implementation of measures suitable for effectively applying data protection principles (art. 5, par. 2, of the Regulation), the Company, even in the event that there was no longer an obligation to retain the biological samples, should have, in any case, adopted methods aimed at ensuring their traceability and identified documented procedures for managing the operations carried out, at all stages of processing, taking into account, in particular, the risks arising from the loss of personal data retained, as provided for by arts. 5, par. 1, lett. f) and 32 of the Regulation.

For these reasons, in relation to the described loss of personal data contained in the slides belonging to the complainant, the illegality of the processing of personal data carried out by the Company is noted, in the terms outlined in the motivation, for the violation of arts. 5, par. 1, lett. f) and par. 2 of the Regulation and art. 32 of the same Regulation, as well as the “Provision containing the prescriptions related to the processing of special categories of data, pursuant to art. 21, par. 1 of Legislative Decree No. 101 of August 10, 2018” of the Guarantor No. 146 of June 5, 2019 (published in G.U. No. 176 of July 29, 2019 and available at [www.gpdp.it](http://www.gpdp.it), web doc No. 9124510).

In this context, considering that the Company has adopted a procedure for the management and preservation of biological material, adopted by resolution No. XX of XX, the conditions for the adoption of corrective measures referred to in art. 58, par. 2, of the Regulation do not currently exist.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (arts. 58, par. 2, lett. i) and 83 of the Regulation; art. 166, par. 7, of the Code). The violation of arts. 5, par. 1, lett. f) and par. 2 of the Regulation and art. 32 of the same Regulation, as well as the “Provision containing the prescriptions related to the processing of special categories of data, pursuant to art. 21, par. 1 of Legislative Decree No. 101 of August 10, 2018” of the Guarantor No. 146 of June 5, 2019 (published in G.U. No. 176 of July 29, 2019 and available at [www.gpdp.it](http://www.gpdp.it), web doc No. 9124510), is subject to the application of the administrative pecuniary sanction pursuant to art. 83, paras. 4 and 5 of the Regulation (see on this point, art. 21, par. 5, of Legislative Decree No. 101 of August 10, 2018, according to which “violations of the prescriptions contained in the general authorizations referred to in this article and in the general provision referred to in paragraph 1 are subject to the administrative sanction referred to in art. 83, par. 5, of the Regulation”).

It should be noted that the Guarantor, pursuant to arts. 58, par. 2, lett. i) and 83 of the Regulation, as well as art. 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to article 83, in addition to [other] corrective measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the Board [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Guarantor's website pursuant to article 166, par. 7, of the Code” (art. 16, par. 1, of the Guarantor's Regulation No. 1/2019).

Considering that the violation of the cited provisions occurred as a result of a single conduct (same

processing or interrelated treatments), art. 83, par. 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation.

Considering that, in this case, the most serious violation concerns arts. 5, par. 1, lett. f) of the Regulation and the aforementioned "Provision containing the prescriptions related to the processing of special categories of data, pursuant to art. 21, par. 1 of Legislative Decree No. 101 of August 10, 2018" of the Guarantor No. 146 of June 5, 2019, the total amount of the sanction is to be quantified up to 20,000,000 euros (maximum so-called "static" penalty).

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by art. 83, par. 2, of the Regulation.

With specific regard to the violation committed by the ARNAS Brotzu Company, it is highlighted that the level of severity has been considered medium, taking into account the number of affected individuals involved, the category of personal data concerned, the

**\*\*Purpose of the processing as well as the level of damage suffered by the data subject (art. 83, par. 2, lett. a) of the Regulation; see European Data Protection Board, "Guidelines 04/2022 on the calculation of administrative fines under the GDPR" of May 23, 2023, point no. 60).\*\***

Furthermore, the additional elements provided for by art. 83, par. 2 of the Regulation have been considered, in particular that:

- The Authority became aware of the case in question following a complaint filed by the data subject (art. 83, par. 2, lett. h) of the Regulation);
- The Company addressed the issues raised by the Office by adopting the specific procedure mentioned regarding the delivery of slides and samples for histological and cytological examinations (art. 83, par. 2, lett. c) of the Regulation);
- The Company demonstrated a high degree of cooperation with the Authority at all stages of the procedure (art. 83, par. 2, lett. f) of the Regulation);
- No previous measures had been taken against the data controller for relevant violations (art. 83, par. 2, lett. e) of the Regulation);
- The reorganization operations of the Sardinian regional system, provided for by the regional law of the Region of Sardinia, of September 11, 2020, no. 24 (entitled "Reform of the regional health system and systematic reorganization of the regulations in the matter. Repeal of regional law no. 10 of 2006, regional law no. 23 of 2014, and regional law no. 17 of 2016 and other sector regulations"), which affected the data controller, caused certain organizational obstacles, also for the purpose of reconstructing the events that led to the violation in question (art. 83, par. 2, lett. k) of the Regulation).

In light of the aforementioned elements, evaluated as a whole, it is deemed appropriate to determine the amount of the administrative fine at the sum of €18,000.00 (eighteen thousand) for the violation of art. 5, par. 1, lett. f) and par. 2 of the Regulation, of art. 32 of the same Regulation, as well as of the "Provision containing the prescriptions regarding the processing of special categories of data, pursuant to art. 21, paragraph 1 of Legislative Decree of August 10, 2018, no. 101" of the Guarantor no. 146 of June 5, 2019.

Given the particular sensitivity of the data processed, it is also considered that the accessory sanction of publication on the Guarantor's website of this provision, as provided for by art. 166, paragraph 7 of the Code and art. 16 of the Guarantor Regulation no. 1/2019, should be applied.

Finally, it is noted that the conditions of art. 17 of Regulation no. 1/2019, concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor, are met.

**\*\*ALL OF THE ABOVE, THE GUARANTOR\*\***

declares the unlawfulness of the processing of personal data carried out by the National and High Specialization Company G. Brotzu, for the violation of art. 5, par. 1, lett. f) and 2 of the Regulation, of

art. 32 of the same Regulation, as well as of the “Provision containing the prescriptions regarding the processing of special categories of data, pursuant to art. 21, paragraph 1 of Legislative Decree of August 10, 2018, no. 101” of the Guarantor no. 146 of June 5, 2019.

**\*\*ORDERS\*\***

pursuant to arts. 58, par. 2, lett. i) and 83 of the Regulation, as well as art. 166 of the Code, the National and High Specialization Company G. Brotzu, with registered office in Cagliari, P.le Ricchi, no. 1 — 09134, VAT number 023155209200, to pay the sum of €18,000.00 (eighteen thousand) as an administrative monetary fine for the violation indicated in this provision; it is noted that the offender, pursuant to art. 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed fine.

**\*\*ORDERS\*\***

the aforementioned Company, in case of failure to settle the dispute pursuant to art. 166, paragraph 8, of the Code, to pay the sum of €18,000.00 (eighteen thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions in accordance with art. 27 of Law no. 689/1981.

**\*\*DISPOSES\*\***

pursuant to art. 166, paragraph 7, of the Code, the full publication of this provision on the Guarantor's website and considers that the conditions of art. 17 of Regulation no. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor, are met.

Pursuant to art. 78 of the Regulation, arts. 152 of the Code and 10 of Legislative Decree no. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, December 21, 2023

**\*\*THE PRESIDENT\*\***

Stanzione

**\*\*THE RAPPORTEUR\*\***

Ghiglia

**\*\*THE SECRETARY GENERAL\*\***

Mattei